



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 9626

SEP 17 1986

1. Miller Electric Mfg. Co., Appleton, Wisconsin, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of welding machines containing batteries for transportation in commerce, subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of welding machines containing batteries in non-accessible places on a motor vehicle, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on an application from Miller Electric Mfg. Co. dated April 10, 1986, submitted in accordance with 49 CFR 107.103, and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and Class). Storage battery, classed as corrosive material.

4. PROPER SHIPPING NAME (49 CFR 172.101). Battery, wet, acid with welding machines.

5. REGULATION AFFECTED. 49 CFR 177.834(k).

6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a battery box securely fastened to and positioned in the welding machine. The machine is attached to wooden runners with bolts and is covered with a plastic bag over which is placed a corrugated fiberboard box.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Packages shipped under this exemption are excepted from the requirements of Section 177.834(k).

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. August 31, 1988.

Issued at Washington, D.C.:


Alan I. Roberts

Director

Office of Hazardous Materials Transportation

SEP 17 1986

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation,
Research and Special Programs Administration, U.S. Department of Transportation,
Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA